BACKGROUND NOTE

408/2
Washington, D.C.
August 9, 1954.

For the information
of British officials.

BRITISH POLICY IN RELATION TO FORMOSA

Formosa was annexed by Japan in 1895 and remained under Japanese rule until the end of World War II. In the Cairo Declaration of December 1943, Great Britain, the United States and the Republic of China agreed that Formosa should be restored to China after the defeat of Japan. Accordingly, in October 1945, the administration of the Island was entrusted to the Nationalist Government which was still the effective Government of China. It was then expected that in due course the Peace Treaty between Japan and the Allies would give de jure recognition to this de facto occupation.

On January 6, 1950, the British Government, having come to the conclusion that the Nationalist Government had ceased to be the effective Government of continental China, withdrew its recognition of that Government and recognised instead the Central People's Government in Peking. The Nationalist authorities, however, remained in control in Formosa.

When the Japanese Peace Treaty was under negotiation (it was signed on September 8, 1951 and came into effect on April 28, 1952) the Allies were unable to agree which Government was entitled to sign it on behalf of China. As a result neither participated in the negotiations and neither signed the Treaty. But the Treaty contained a clause whereby Japan relinquished her claim to Formosa, so that the final disposition of the island was left in suspense.

Since the British Government does not recognise the claim of Chiang Kai Shek's Nationalist Government in Formosa to be the Government of China, they do not maintain diplomatic relations with that regime. However, there is a British Consul at Tamsui who, in accordance with the practice of the British Government in a number of similar situations in the past, maintains relations with the provincial authorities (i.e. the Governor) of Formosa, who are recognised to be de facto in control of the island. The function of the British Consul is to look after British interests in Formosa.

Although Britain recognises the Central People's Government of China in Peking, it has never been British policy to press for the handing over of Formosa to the Chinese Communists. On this point British policy remains as it was stated by the Prime Minister, Sir Winston Churchill, two years ago when, in the House of Commons debate on January 30, 1952, he said:

> "What I have said, and repeat, is that he (Chiang Kai Shek) and those who fought with him against the Communists, and have taken refuge upon the island of Formosa, should not be invaded and massacred there while the United Nations' forces possess such overwhelming superiority."

This policy has been endorsed by the Leader of the Opposition (the Labour Party), Mr. Clement Attlee, who as recently as July 14, 1954, in the course of a Foreign Affairs debate in the House of Commons, referred to the proposal he had supported over a period of years that Formosa should be held in trusteeship by the United Nations. In the same debate, Sir Winston Churchill said:

> "I certainly do not see anything in the conduct of China which has yet happened which should lead the American Government to deliver Formosa to Communist China."

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903 National Press Building, Washington 4, D. C.

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